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LUIS PADILLA, ET AL. v. KIA AMERICA, INC.

CASE NO.: 25NWCV00263

HEARING: 08/27/2026 @ 10:30 AM

#14

TENTATIVE ORDER

Plaintiffs Luis Padilla and

Natalie Padilla's motions to compel further responses to requests for production of documents, set one; special interrogatories, set one; and form interrogatories, set one are MOOT.

Moving party to give notice.

Plaintiffs Luis Padilla and Natalie Padilla (Plaintiffs)

move to compel Defendant Kia America, Inc. (Defendant) to provide further responses (1) special interrogatories (SROGs), set one; (2) form interrogatories (FROGs), set one, and (3) requests for production of documents (RPDs), set one.

Background

On January 22, 2025, Plaintiffs filed this lemon law action against Defendant and Does 1 through 10. The complaint alleges that Plaintiffs experienced defects and nonconformities to warranty with their leased 2023 Kia

Soul. (Complaint, ¶¶ 8, 10.) The complaint asserts three causes of action: (1) violation of Song-Beverly Act – breach of express warranty; (2) violation of Song-Beverly Act – breach of implied warranty; and (3) violation of Song-Beverly Act section 1793.2.

On July 23, 2026, the Court granted Plaintiffs' motion to compel Defendant to provide further responses to requests for admissions, set one. On the Court's own motion, the Court advanced Plaintiffs' motions to compel further responses to set one of FROGs, SROGs, and RPDs to today's date.

Legal Standard

Interrogatories

Under Code of Civil Procedure section 2030.300, subd. (a), "[o]n receipt of a response to interrogatories, the propounding party may move for an order compelling a further response if the propounding party deems that any of the following apply:

(1) An answer to a particular interrogatory is evasive or incomplete.

(2) An exercise of the option to produce documents under Section 2030.230 is unwarranted or the required specification of those documents is inadequate.

(3) An objection to an interrogatory is without merit or too general."

"As a litigant, it is entitled to demand answers to its interrogatories, as a matter of right, and without a prior showing, unless the party on whom those interrogatories are served objects and shows cause why the questions are not within the purview of the code section." (Williams v. Superior Court (2017) 3 Cal.5th 531, 541.) "While the party propounding interrogatories may have the burden of filing a motion to compel if it finds the answers it receives unsatisfactory, the burden of justifying any objection and failure to respond remains at all times with the party resisting an interrogatory." (Ibid.)

Requests

for Production

Under Code of Civil Procedure section 2031.260, subdivision

(a), a party must respond to requests for production of documents within 30 days of service. Failure to do so waives all objections including privilege or on the protection of work product. (See Code Civ. Proc., § 2031.300, subd. (a).) Parties may move for a further response to requests for production of documents where a statement of compliance with the demand is incomplete, a representation of inability to comply is inadequate, incomplete, or evasive, or where an objection is without merit or too general. (Code Civ. Proc., § 2031.310, subd. (a).)

Meet and Confer

A motion to compel further discovery shall be accompanied by a meet and confer declaration. (See Code Civ. Proc., §§ 2030.300, subd. (b), 2031.310, subd. (b)(2).) A meet and confer declaration in support of a motion shall state facts showing a reasonable and good faith attempt at an informal resolution of each issue presented by the motion. (Code Civ. Proc., § 2016.040.)

Plaintiffs' counsel details four attempts to meet and confer with defense counsel but did not receive any responses. (Enav Decl., ¶¶ 13-16.) While this does not demonstrate a good faith meet and confer process, based on Plaintiffs' efforts, the Court will proceed to rule on the merits of this motion.

Discussion

Plaintiffs move to compel Defendant to provide further responses to sets one of their SROGs, FROGs, and RPDs.

Motion to
Compel Further Responses to Special Interrogatories

Plaintiffs move to compel Defendant to provide further responses to SROGs, set one, nos. 1-67.

In opposition, Defendant contends this motion is moot since it provided further responses to all sixty-seven disputed SROGs. Defendant

provided supplemental responses on July 21, 2026. (Elias Decl., ¶ 6.)

In reply, Plaintiffs acknowledge that Defendant made a supplemental production but raise arguments regarding the production. Plaintiffs argue that the supplemental production lacks document production. However, Plaintiff does not show how document production is required when providing responses to interrogatories.

Based on the supplemental production to all SROGs at issue, the arguments raised in the instant motion are moot.

Accordingly, Plaintiffs' motion to compel further responses to SROGs, set one, is MOOT.

Motion to
Compel Further Responses to Form Interrogatories

Plaintiffs move to compel Defendant to provide further responses to FROGs, set one, nos. 1.1, 3.1, 3.2, 4.1, 12.1, 12.2, 12.3, 12.4, 12.5, 12.6, 13.1, 13.2, 14.1, 15.1, 17.1, 50.1, 50.2, 50.3, 50.4, 50.5, and 50.6.

In opposition, Defendant contends this motion is moot since it provided further responses to all twenty-two disputed FROGs. Defendant provided supplemental responses on July 21, 2026. (Elias Decl., ¶ 6.)

In reply, Plaintiffs acknowledge that Defendant made a supplemental production and raises arguments regarding the supplemental production.

Based on the supplemental production to all the FROGs at issue, the arguments raised in the instant motion are moot.

Accordingly, Plaintiffs' motion to compel further responses to FROGs, set one, is MOOT.

Motion to
Compel Further Responses to Requests for Production

Plaintiffs move to compel Defendant to provide further

responses to RPDs, set one, nos. 1-31.

In opposition, Defendant contends this motion is moot since it provided further responses to all thirty-one disputed RPDs. Defendant provided supplemental responses on July 21, 2026. (Elias Decl., ¶ 6.)

In reply, Plaintiffs acknowledge that Defendant made a supplemental production but raises arguments regarding the production.

Based on the supplemental production to all the RPDs at issue, the arguments raised in the instant motion are moot.

Accordingly, Plaintiffs' motion to compel further responses to RPDs, set one, is MOOT.